

often very harrowing testimony was immense, and some had to be replaced midtrial. There was also criticism of the system because of the high possibility of mistranslation under pressure, as well as interpreters giving their own take on the statements, either consciously or inadvertently. Meanwhile, lawyers complained that the translation process gave defendants crucial thinking time under cross-examination. Despite all of this, the system proved successful and has since become the norm in international trials.

The London Charter defined three new kinds of crime. First were crimes against peace—defined, in essence, as planning for and starting wars of aggression. Second were war crimes, defined as breaking the conventions of war in the treatment of civilians and prisoners. And finally, there were crimes against humanity,

The Nazi leaders put on trial

included (pictured front row of the dock, from left) Hermann Göring, Rudolf Hess, Joachim von Ribbentrop, Wilhelm Keitel, and Ernst Kaltenbrunner.

which included murder; forced labor; forced movement of civilians; and persecution on political, religious, or racial grounds.

During the trials, prosecutors identified the Nazis' crimes against humanity as genocide, using a term coined in 1944 by Polish lawyer Raphael Lemkin. The word was his response to the Holocaust, as well as to other historic instances of the destruction of whole nations or groups defined by their ethnicity or religion. The United Nations outlawed genocide in the 1948 Convention on the Prevention and Punishment of the Crime of Genocide, which came into force in 1951, after the Nuremberg trials had concluded.

The accused

In October 1945, 24 Nazi leaders and several Nazi organizations, including the Gestapo, were indicted and ordered to appear before the main tribunal in what was called the Trial of the Major War Criminals. Some of the main players—notably Adolf Hitler himself, Heinrich Himmler, and Joseph Goebbels—were missing,



Reichsmarschall Hermann Göring was behind the implementation of the so-called Final Solution, the plan that was intended to completely annihilate Europe's Jewish population.

having either committed suicide in the closing stages of the war or fled without trace.

The tribunal considered that it was legitimate to try commanders for crimes that were committed by their troops under the doctrine of "command responsibility," a concept that had been established by the Hague Conventions of 1899 and 1907. Although not everybody was in agreement, there was a precedent. In 1921, after World War I, German captain Emil Müller had been convicted under this directive by the German Supreme Court for the cruelty of his troops at the Flavy-le-Martel prison camp.

The most prominent among the accused at Nuremberg was Hermann Göring, the former air force chief and the man responsible for the implementation of a plan of mass murder called The Final

